

BEFORE THE IOWA BOARD OF SOCIAL WORK

	)	DIA NO. 07DPHSW008
IN THE MATTER OF:	)	
	)	
	)	FINDINGS OF FACT,
ANN BYRNE-BOES	)	CONCLUSIONS OF LAW,
	)	DECISION AND ORDER

On August 16, 2007 the Iowa Board of Social Work (Board) sent Ann Byrne-Boes (Applicant) a preliminary notice of intent to deny her application for a license to practice social work at the independent level. The Applicant appealed, and a Notice of Hearing was issued on September 21, 2007. The hearing was held on November 26, 2007 at 11:00 a.m. in the fifth floor conference room, Lucas State Office Building, Des Moines, Iowa. The following members of the Board presided at the hearing: Joyce Westphal, LISW, Chairperson; Katinka Keith, LISW; David Stout, LMSW; and Mary Tasler, public member. Administrative Law Judge Margaret LaMarche assisted the Board in conducting the hearing. The Applicant appeared and was represented by attorney George W. Appleby. Assistant Attorney General Heather Adams represented the state. A certified court reporter recorded the hearing. The hearing was open to the public, pursuant to Iowa Code section 272C.6(1)(2007). Following the hearing, the Board convened in closed executive session to deliberate their decision, pursuant to Iowa Code section 21.5(1)(f)(2007). The administrative law judge was instructed to prepare Findings of Fact, Conclusions of Law, Decision and Order, in accordance with the Board's deliberations.

THE RECORD

The record includes the testimony of the witness and the following exhibits:

State Exhibit 1:	Iowa Code section 154C.3
State Exhibit 2:	645 IAC chapter 280
State Exhibit 3:	Application for Social Work Licensure, 4/19/04
State Exhibit 4:	Letter, Sparks to Applicant (6/24/04)
State Exhibit 5:	Letter, Applicant to Sparks (8/11/04)
State Exhibit 6:	Application for Social Work Licensure, 4/15/07

State Exhibit 7: Letter, Applicant to Sparks (7/26/07) and attached letter, Loeffelholz to Sparks (8/26/04) and Supervision Report, 8/20/04

State Exhibit 8: Preliminary Notice of Intent to Deny Licensure, 8/16/07

State Exhibit 9: Letter, Sparks to Applicant (8/16/07)

State Exhibit 10: Appeal Letter, 9/13/07

State Exhibit 11: Notice of Hearing, 9/21/07

Applicant Exhibit A: Letter, Loeffelholz to Sparks (8/26/04) and Supervision Report

Applicant Exhibit B: List Supervision Hours by Loeffelholz

Applicant Exhibit C: List Supervision Hours by Deb Smith

ISSUE

Whether the Board's initial decision denying the application for social work licensure at the independent level was correct because the Applicant's supervised professional practice was not completed within the required time period of a minimum of two years and a maximum of six years? Whether the Board should now grant the Applicant a waiver or extension of the six-year maximum time period? 645 IAC 280.6(1).

FINDINGS OF FACT

1. The Applicant earned a Masters of Social Work on December 20, 1997 and has been licensed as a master level social worker in the state of Iowa (License #05765) since January 31, 2000. On April 19, 2004, the Applicant filed an application for social work licensure at the independent level, stating she had been employed part-time (25 hours a week) in the following social work positions:

- As an in-home therapist for West Iowa Family Services in Denison, Iowa from 12/4/02 through the date of the application. The Applicant described her practice at West Iowa as providing family therapy and parenting skills to high risk families.
- As a therapist for Catholic Charities in Carroll, Iowa from June 6, 1996 through October 22, 2002. The Applicant

described her practice at Catholic Charities as "therapy for individuals, couples, families, licensing foster homes, adoption studies."

The Applicant attached a Supervision Report signed by Doreen M. Loeffelholz, LISW, ACSW, indicating that Loeffelholz had directly supervised the Applicant from May 9, 1997 through September 26, 2002 for a total of 160 hours. Loeffelholz further indicated that the Applicant had completed the number of supervision hours¹ required by the board in a position performing psychosocial assessment, diagnosis, and treatment. (Testimony of Applicant; State Exhibit 3)

2. On June 24, 2004, the Board Administrator wrote to the Applicant, acknowledged receipt of her application, and pointed out that according to the submitted Supervision Report Form, the Applicant began her supervised practice before she was licensed and authorized to begin practice at the master's level. The Board Administrator told the Applicant that her application would remain pending until receipt of a supervision report showing two years of authorized practice and 110 hours of direct supervision during that time. The Applicant was further notified that the Board's attorney would contact her regarding the period of unauthorized practice. (State Exhibit 4)

3. On August 11, 2004, the Applicant wrote to the Board Administrator, stating that somehow both she and Doreen Loeffelholz had overlooked Loeffelholz's error on the supervision form, that she was working as a supervised MSW at Catholic Charities prior to becoming licensed, and that Loeffelholz did not separate out the hours. The Applicant further stated that they had both been very busy, but that Loeffelholz was going through her records and would correctly list the supervision hours and complete the report. (State Exhibit 5)

4. The Applicant did not contact the Board again until May 8, 2007, when she submitted a new application for licensure at the independent level, indicating that she has been employed part-time (20 hours a week) in the following social work positions:

¹ Board rules require the equivalent of two years of full-time post-master's social work degree practice at the master's level or 4,000 hours of post-master's social work experience over a minimum two-year and maximum six-year period. 645 IAC 280.6(1)"a" and "b."

- As a caseworker at Lutheran Services in Denison, Iowa from 1/9/06 through the date of the application. The Applicant described her practice as providing "in-home support to DHS high risk or court ordered families, teaching parenting skills, coordinating with other agencies maintaining case files."
- As an in-home therapist at Family Ties in Council Bluffs, Iowa from November 2004 to January 8, 2006. The Applicant described her practice as providing "in home therapy-parenting skills to Department of Human Service referred families."

The Applicant attached a new Supervision Report dated April 23, 2007 from Doreen M. Loeffelholz, LISW, ACSW. Loeffelholz indicated that she had directly supervised the Applicant for 70 hours, from January 31, 2000 to September 26, 2002, and for an additional 40 hours, from January 3, 2006 through October 20, 2006, for a total of 110 supervised hours. Loeffelholz further indicated that the Applicant had completed the number of hours of supervision required in a position performing psychosocial assessment, diagnosis, and treatment. (Testimony of Applicant; State Exhibit 6; Applicant Exhibit B)

5. In late June 2007, the Applicant called the Board Administrator to inquire about the status of her second application, and the Board's Administrator expressed concern that the supervision hours submitted by the Applicant exceeded the maximum six-year time frame for completion. On July 31, 2007, the Applicant wrote to the Board Administrator to request a nine month extension of the six-year time frame for completing the supervision hours. In support of her request for extension, the Applicant cites to the following personal circumstances:

- She was laid off from her position with Catholic Charities in October 2002, at a time when she had only accrued 70 hours of supervision from Doreen Loeffelholz;
- She and her husband had adopted two special needs children from Russia in 1997. As the primary care giver, the Applicant felt she needed a part-time position with flexible hours, which was difficult to find in her rural area;
- After a 2½ month search, she found a position providing in-home counseling at West Iowa Family Services in Denison.

However, her supervisor in this position was a marriage and family therapist and not an LISW, and she did not seek Board authorization to approve him to supervise her hours nor did she seek outside supervision. She was laid off from this position in November 2004;

- In November 2004, she took a similar position with Family Ties. She had been promised supervision in this position but when it was not provided, she arranged for outside supervision on her own, first from Deb Smith, LISW², but when Smith had too many scheduling conflicts, the Applicant arranged for Doreen Loeffelholz to provide supervision after her regular work hours.
- In January 2006, she was hired by Lutheran Services, resumed supervision with Ms. Loeffelholz, and completed the 110 hours by October 20, 2006.

The Applicant also reported that after speaking to the Board Administrator in late June, she searched her files and found an original letter from Doreen Loeffelholz dated August 26, 2004 and an amended Supervision Report. In the August 26, 2004 letter, Loeffelholz stated that she had "overlooked the dates" to be included in the original supervision report, that the Applicant did not practice at the Master's level until after January 31, 2000, and that the Applicant had completed a total of 70 hours of direct supervision. In her July 31, 2007 letter to the Board's Administrator, the Applicant wrote that as she recalled, she felt there was no need to send in the letter and corrected supervision report right away because she was waiting to hear from the Board's attorney. (Testimony of Applicant; State Exhibit 7)

6. On August 16, 2007, the Board notified the Applicant that it was denying her application for licensure at the independent level because the Board's rule requires a minimum of two years, maximum of six years of supervised practice. The supervised practice experience exceeded that six-year period. [645 IAC 280.6(1)"b"] The Board Administrator also sent a letter to the Applicant outlining the Board's expectations for any future application. The Board advised the Applicant that if she was to enter into a supervised practice experience in the future, she and her supervisor should submit the Plan of Supervision to the

² The Applicant's Exhibit C is a listing of the supervision hours provided by Deb Smith, but Deb Smith did not complete a Supervision Report Form.

Board for their review and approval. The Applicant was reminded that she must be employed in a position performing psychosocial assessment, diagnosis, and treatment/therapy. The Applicant was provided guidance concerning the differences between bachelor's level social work and master's/clinical level social work. (Exhibits 8, 9)

CONCLUSIONS OF LAW

The Iowa legislature mandates licensure for social workers in Iowa and has specified requirements for three levels of permanent licensure: bachelor social worker, master social worker, and independent social worker. Iowa Code sections 154C.2; 154C.3. Requirements for licensure at the independent level include, in part, possession of a master's or doctoral degree in social work, passing an examination, and having engaged in the practice of social work, under supervision, for at least two years as a full-time employee or four thousand hours prior to taking the examination given by the board. Iowa Code section 154C.3(1)(c)(1)-(4) (2007).

Supervision shall be provided by a social worker licensed at least at the level of the social worker being supervised and qualified to practice without supervision, unless the board determines that such supervision is unobtainable or that supervision by another qualified professional is appropriate. The legislature has specifically authorized the board to determine "additional standards for supervision." Iowa Code section 154C.3(5) (2007).

Iowa Code section 154C.1(3) provides, in relevant part:

3. ...The practice of social work for each of the categories of social work licensure includes the following:

...

b. Master social workers are qualified to perform the practice of bachelor social workers and provide psychosocial assessment, diagnosis, and treatment, including but not limited to performance of psychosocial histories, problem identification and evaluation of symptoms and behavior, assessment of psychosocial and behavioral strengths and weaknesses, effects of the environment on behavior, psychosocial

therapy with individuals, couples, families, and groups, establishment of treatment goals and monitoring progress, differential treatment planning, and interdisciplinary consultation and collaboration.

c. Independent social workers are qualified to perform the practice of master social workers as a private practice.

Pursuant to the authority delegated by Iowa Code section 154C.3(5), the Board has promulgated rules defining supervised professional practice for social work licensure at the independent level. 645 IAC 280.6 provides, in relevant part:

645-280.6(154C) Supervised professional practice for the LISW.

280.6(1) The supervised practice shall:

a. Be the equivalent of two years of full-time post-master's social work degree practice at the master's level performing psychosocial assessment, diagnosis and treatment; or

b. Be 4,000 hours of post-master's social work degree experience at the master's level performing psychosocial assessment, diagnosis and treatment over a minimum two-year and maximum six-year period;

c. Have at least 110 hours of supervision which shall be equitably distributed throughout a minimum of a two year period;...

280.6(2) The board maintains the authority to grant waivers relevant to the time parameters of the supervised professional practice upon written request of the applicant.

Since the Applicant has only worked part-time at the Master's level, the applicable rules for her supervised professional practice are found at 645 IAC 280.6(1)"b" and "c." The Applicant is required to establish that she has 4,000 hours of post-master's social work degree experience at the master's level performing psychosocial assessment, diagnosis and treatment over a minimum two-year and maximum six-year period. In addition, the Applicant must have at least 110 hours of supervision which shall be equitably distributed throughout the 4,000 hours of professional practice.

The Applicant's attorney points out that 645 IAC 280.6(1)"c" states that the 110 hours of supervision shall be equitably distributed throughout a minimum of a two-year period but does not specifically reference the maximum six-year period included in subrule 280.6(1)"b." However, when subrule 280.6(1)"c" is read in the context of the entire rule and the statutory requirements set out at Iowa Code section 154C.3(c)(4), it is clear that the time period for completing the 110 hours of supervision must necessarily correspond to the time period for completing the master's level professional practice. Thus, if an applicant has two years of full-time qualifying master's level practice, then the 110 hours of supervision must be distributed throughout a minimum of a two-year period. 645 IAC 280.6(1)"a" and "c." However if an applicant has only worked part-time at the master's level, the Board has consistently interpreted 645 IAC 280.6(1)"c" to require the 110 hours of supervision to be equitably distributed throughout a minimum two-year period and a maximum six-year period, unless a waiver has been granted under subrule 280.6(2).

The Applicant concedes that the 110 hours of supervised work experience that she submitted with her application is spread out over a period of 6 years, 8 and 2/3 months. Consistent with Board rules and past precedent, the application must be denied unless a waiver has been granted. The Board considered the reasons advanced by the Applicant in support of her request for a waiver but finds no compelling reason to grant a waiver in her case. Following her first application for licensure at the independent level, the Applicant was specifically advised by the Board that she would have to show two years of authorized practice and 110 hours of direct supervision "during that period of time." The Applicant responded that she and her supervisor would submit a corrected list of supervision hours, but then she did not submit the corrected supervision report until after the second application was filed in 2007.

If the Applicant and her supervisor had carefully reviewed the Board's rules and/or consulted Board staff for assistance in a timely manner, they would have recognized that there could be a problem with the Applicant completing the hours of direct supervision in a timely manner. The Applicant had a number of available options to complete her supervised hours within the required timeframe. She could have sought prior Board approval for her supervisor at West Iowa Family Services, pursuant to

subrule 280.6(3)"g." The Applicant could have made her own arrangements for outside supervision if the agency did not employ a qualified LISW. See 645 IAC 280.6(4)"a." All else failing, the Applicant should have filed her request for an extension/waiver prior to the expiration of the six-year time frame.

Based on a further review of the application and the Applicant's testimony at hearing, the Board has concerns whether the Applicant has in fact been practicing at the master's level in a position performing psychosocial assessment, diagnosis, and treatment/therapy. If the Applicant enters into supervised practice in the future with the goal of obtaining licensure at the independent level, she and her supervisor should provide the Board with a Plan of Supervision for review and approval, as recommended in the August 16, 2007 letter from the Board's Administrator. (State Exhibit 9)

DECISION AND ORDER

IT IS THEREFORE ORDERED that the application for a license to practice social work at the independent level, filed by Ann Byrne-Boes, is hereby DENIED.

This findings of fact, conclusions of law, decision and order is approved by the board on December 20, 2007.

Any appeal to the district court from a decision in a contested case shall be taken within 30 days from the date of issuance of the decision by the Board. 645 IAC 11.29.